

Suvralin Dash vs Rakesh Kumar Pati on 3 July, 2026

IN THE HIGH COURT OF ORISSA AT CUTTACK

MATA No.212 of 2026

Suvralin Dash

....

Appellant

Represented By Adv.-

Ms. Sonali Panda, Advocate

-versus-

Rakesh Kumar Pati

....

Respondent

Represented By Adv.-

CORAM:

THE HON'BLE MR. JUSTICE MANASH RANJAN PATHAK

AND

THE HON'BLE MR. JUSTICE SIBO SANKAR MISHRA

ORDER

03.07.2026 (Hybrid mode) Order No. I.A. No.360 of 2026 & MATA No. 212 of 2026

01. 1. Heard Ms. Sonali Panda, learned counsel appearing for the appellant-wife.

2. The respondent, as petitioner earlier, filed Civil Proceeding No.600 of 2023 under Section 13(1) of the Hindu Marriage Act, 1955 before the Court of learned Judge, Family Court, Cuttack for dissolution of his marriage with the appellant-wife that was solemnized on 01.07.2020.

3. After hearing the parties and considering the materials adduced before it by them, the learned Judge, Family Court, Cuttack by the impugned judgment dated 07.05.2026 allowed the said Civil Proceeding No.600 of 2023 of the respondent/petitioner-husband on contest against the appellant-wife fixing the permanent alimony of Rs.2,00,000/- (rupees two lakhs) to the appellant-wife.

4. Aggrieved by the said judgment dated 07.05.2026 and the quantum of alimony, the wife as appellant has preferred this appeal under Section 19(1) of the Family Courts Act, 1984 read with Section 28 of the Hindu Marriage Act, 1955.

5. The Interlocutory Application has been filed seeking condonation of the reported delay of 11 days in preferring the present appeal.

6. Issue notice in the I.A. as well as the appeal to the respondent-husband along with a copy of this order.

7. The appellant shall take steps for service of notice upon the sole respondent by Speed Post with AD. Requisites for issuance of notice by Speed Post with registration and proof of delivery shall be filed within next three working days.

8. Call for the scanned copy of the Records of Civil Proceeding No.600 of 2023 from the Court of learned Judge, Family Court, Cuttack, which was disposed of on 07.05.2026.

8. List this matter after due service of notice upon the respondent-husband.

9. Liberty to mention.

(Manash Ranjan Pathak) Judge (Sibo Sankar Mishra) Judge

02. 1. Heard Ms. Sonali Panda, learned counsel appearing for the appellant.

2. Issue notice to the respondent.

3. Accept one set of process fee.

4. As an interim measure, it is ordered that the operation of the impugned Judgment dated 07.05.2026 passed by the learned Judge, Family Court, Cuttack in Civil Proceeding No.600/2023 shall remain stayed till the next date.

(Manash Ranjan Pathak) Judge (Sibo Sankar Mishra) Judge Rati Ranjan